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File No.: EXP202211906

RESOLUTION No.: R/00439/2023

Considering the complaint filed on October 31, 2022, with this Agency by A.A.A. (hereinafter the complainant), against the COMMUNITY OF PROPERTY OWNERS R.R.R. (hereinafter the respondent), for not having properly attended to their right of access.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant requested the right of access from the respondent with NIF ***NIF.1, and their request, as stated by the complainant, did not receive the legally established response.

The complainant states that they request the right of access as provided for in data protection regulations and additionally requests the following documentation:

1. Copy of their address in Spain for the purposes of summons and notifications.
2. Copy of the burofax sent to the administrator B.B.B.
3. Photocopy of the minutes book.
4. Photocopy of the notices for meetings and the details of the conveners.

The complainant provides various documents related to the complaint filed with this Agency and regarding the exercise of the right exercised.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission for processing of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the entity being complained against for analysis and to respond to the complainant and this Agency within one month.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on January 31, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period for resolving the present procedure, which is understood to have commenced with the said admission agreement, will be six months.

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The aforementioned agreement granted the entity being complained against a hearing procedure, so that within ten working days it could present the allegations it deemed appropriate.

This entity states that it cannot provide part of the data requested by the complainant due to structural problems within its organization, such as currently being without an administrator in the community of property owners and having difficulties in collecting some data. They invite the complainant to view the documentation.

FOURTH: After examining the allegations presented by the respondent, they are forwarded to the complainant so that, within fifteen working days, they can formulate any allegations they consider appropriate.

In the complainant's allegations, in summary, they discuss the minutes book, notices of meetings, the burofax for which they requested a copy, and conclude by expressing their complaints regarding the functioning of the community of property owners. They add before concluding the allegations that they request the list of owners who convened the meeting and the notice of the meeting from the president.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in

accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as handling complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission for processing of the complaint that gives rise to this procedure, the complaint was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it had provided the complainant with the due response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

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The aforementioned admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, given that its exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure based on any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of

rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, thus fulfilling the request (although the interested party may request the information referred to in the provisions of Article 15 of the GDPR).

The exercise of this right may be considered repetitive more than once during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

In the case analyzed here, the claiming party exercised the right of access to which they added a series of points originating from the contractual/neighborhood relationship with the community of property owners of which they are a part. Considering the response incomplete, they filed a complaint with this Agency.

After analyzing the claimant's request, it should be emphasized that they request access to two types of documents: on one hand, to the documents containing their personal data and, on the other, to various documentation that does not contain their personal data.

Once this clarification has been made, it should be indicated, in accordance with what has been stated so far, that the right of access guaranteed by the data protection regulations...

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data will only cover access to documents containing personal data of the complainant, as long as such documents allow access to personal data intrinsically linked to the document. Therefore, this resolution will only address the right of access provided for in Article 15 of the GDPR and Article 13 of the LOPDGDD, and the other issues raised by the complainant must be resolved in other instances, as they exceed the jurisdictional scope of this Agency.

Having said the above, it can be concluded that from the analysis of the documentation in the procedure, there are indications from which it can be inferred that the right of access requested by the complainant to their personal data has not been attended to; for this reason, it is appropriate to uphold the complaint with the exclusive scope previously indicated.

Based on the above, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, it is appropriate to uphold the complaint that originated this procedure, as it is considered that the right of access was not carried out properly.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. and to urge the COMMUNITY OF OWNERS R.R.R. with NIF ***NIF.1, to send, within ten working days following the notification of this resolution, a certification to the complainant addressing the requested right of access or denying it with justification indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to the COMMUNITY OF OWNERS R.R.R.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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